

Thailand car-loan securitization: primary-law map

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Tags (A1, D3, G6...) are the research memo's own section numbers. Dates are Gregorian, with the Buddhist Era year in parentheses.

Role	Instrument / file	What each section does	Bears on
1. The securitization statute and its SEC chain			
Statute	พระราชกำหนดนิติบุคคลเฉพาะกิจเพื่อการแปลงสินทรัพย์เป็นหลักทรัพย์ พ.ศ. 2540 Emergency Decree on SPJPs for Securitization B.E. 2540 (1997), consolidated pdf/decree-spjp-securitization-1997-be2540-ocs-consolidated.pdf	s.9 vehicle is a company, PLC, other SEC-prescribed entity, or a trust ; sole object must be securitization; trust-form subject to Trust Act unless stated otherwise. • ss.10–11 seller files project with SEC Office; registered as SPJP on approval. • s.11/1 one project at a time (trust-form trustee may run several) – inserted 2015. • s.12 SPJP may receive assets transferred or as security , issue securities, borrow, invest. • ss.15–15/1 dispenses with CCC s.306 borrower notice where originator stays servicer; debtor defenses (s.308) preserved; servicer keeps separate account/debtor list. • ss.16,17,19 security follows the asset through transferees; fee-exempt transfer/registration; SPJP substituted as litigant. • s.18 disapples CCC s.654's 15% cap for transferred assets lawfully bearing more. • s.20 transfer at (1) book value or (2) an independent FA's fair-price opinion is a deemed proper price (not inadequate consideration, no clawback); two limbs only, no risk-transfer test. • s.21 applies ss.15,16,17,19 to reverse transfers/security release – not an investor-priority rule.	<i>Threshold, A3, A6, B1, D1–5.</i> Regime core: s.15 is why the pool is workable; s.20 the safe harbor, corrected of a risk-transfer gloss, separate from recharacterization risk; s.21 misattributed to investor priority; s.18/s.9 security option are favorable points the draft omits.
Statute	พระราชบัญญัติแก้ไขเพิ่มเติมพระราชกำหนดนิติบุคคลเฉพาะกิจเพื่อการแปลงสินทรัพย์เป็นหลักทรัพย์ พ.ศ. 2540 พ.ศ. 2558 Act Amending the Emergency Decree, B.E. 2558 (2015) pdf/act-amending-spjp-securitization-decree-2015-be2558-gazette.pdf	s.2 effective the day after Gazette publication, i.e. March 27, 2015 (Gazette Vol. 132, Part 21 Kor, pp.61–68, published March 26, 2015; signed March 20, 2015). s.6 repeals and re-enacts the whole of Chapter 2 (ss.9–24) under the same numbers, inserting ss.11/1 and 15/1 and adding the trust vehicle at s.9. Countersigned by PM Prayut Chan-o-cha.	<i>G1–2.</i> Currency confirmation for the Decree; the consolidated text above already reflects this Act's changes.
Statute	พระราชบัญญัติทรัสต์เพื่อธุรกรรมในตลาดทุน พ.ศ. 2550 Trust for Transactions in Capital Market Act B.E. 2550 (2007) pdf/trust-transactions-capital-market-act-2007-be2550-ocs-consolidated.pdf pdf/trust-transactions-capital-market-act-2007-be2550-sec-english-unofficial.pdf (unofficial; Thai controls)	ss.3–4 defines trust and trust instrument, including a unilateral declaration where settlor = trustee ; a trust may be formed for SEC-listed capital-market transactions incl. securitization under the SPJP law. • ss.11–12 arises on written instrument (or, settlor=trustee, on filing with SEC Office); permitted settlors incl., by name, the SPJP originator. • s.13 settlor/trustee may be a beneficiary only alongside others, capped proportion. • s.16 void if created contrary to ss.11–12 or trusteeship is unapproved/barred.	<i>Threshold, A3.</i> Corrects the draft's "self-declared trust: void": a unilateral declaration is expressly contemplated, and this is the "law enabling trust creation" CCC s.1686 (Group 6) carves out. The originator is a named permitted settlor.
SEC	ประกาศ ก.ล.ด. ที่ กจ. 7/2552 (ฉบับประมวล) SEC Notification Kor Jor. 7/2552, project approval (consolidated) pdf/sec-notification-korjor-7-2552-securitization-project-approval.pdf	cl.3(5) the head under which Sor Jor. 32/2565 below is issued and the SEC approval RD 441/DG 152 (Group 3) condition the CIT exemption on. cl.7 in force March 31, 2009.	<i>A2, G3, G6.</i> The approval every downstream relief in Groups 2–3 is conditioned on.
SEC	ประกาศสำนักงาน ก.ล.ด. ที่ สจ. 32/2565 SEC Office Notification Sor Jor. 32/2565, cash-flow allocation pdf/sec-office-notification-sorjor-32-2565-cashflow-allocation-and-residual-reporting.pdf	cl.4–5 allocation floors – at least 70% of average project-life income and 60% each accounting year, waivable for cause; in force October 1, 2022. cl.2,6 "income" includes rent received; residual report goes to the Revenue Department as well as the SEC Office once the CIT exemption applies.	<i>G6.</i> The substance of DG Notification 152's condition (2) (Group 3); links the securities and tax chains on the instrument's face.
SEC	ประกาศ ก.ล.ด. ที่ กร. 23/2564 SEC Notification Kor Ror. 23/2564, permitted trust transactions pdf/sec-notification-korror-23-2564-permitted-trust-transactions.pdf	cl.2(1) lists a securitization SPJP trust (4th) and a sukuk trust (5th) as separate permitted Trust Act transaction categories; in force August 1, 2021, revoking four predecessors.	<i>B9.</i> Confirms a securitization trust is its own Trust Act "capital-market transaction," and that RD 533's sukuk carve-out (Group 4) does not reach it.
2. Transfer-tax reliefs: Specific Business Tax, VAT and stamp duty, and their conditions			
RD, SBT	พระราชกฤษฎีกาฯ (ฉบับที่ 240) พ.ศ. 2534, แก้ไข โดย (ฉบับที่ 334) พ.ศ. 2541 Royal Decree No. 240 B.E. 2534, amended by No. 334 B.E. 2541 pdf/rd-240-1991-be2534-sbt-exemption-decree.pdf pdf/rd-334-1998-be2541-sbt-exemption-amending-decree.pdf	s.3(8)–(9) , inserted by RD 334 s.3 : exempts SBT on the SPJP's securitization business (both transfer and transfer-back) and the mirror exemption for the originator, subject to DG conditions. Issued under Revenue Code s.91/3(7) (Group 6).	<i>A2, D1, D3, B6.</i> The core transfer-tax relief. Not to be confused with RD 331/2541 (securities lending, wrongly cited for securitization in an earlier draft, B6).
RD, VAT	พระราชกฤษฎีกาฯ ว่าด้วยการยกเว้นภาษีมูลค่าเพิ่ม (ฉบับที่ 239) พ.ศ. 2534 & (ฉบับที่ 333) พ.ศ. 2541 Royal Decree No. 239 B.E. 2534 and amendment No. 333 B.E. 2541 pdf/rd-239-1991-be2534-vat-exemption-decree.pdf pdf/rd-333-1998-be2541-vat-exemption-amending-decree.pdf	A separate VAT-exemption pair (adjacent numbers to the SBT pair above, unrelated subject). s.3, item 8 reaches asset transfers of the securitization kind. Lending/financial receivables are independently outside VAT under Revenue Code s.77/3 (Group 6).	<i>A1, B7, G10.</i> Confirms a historical VAT-defeated-a-true-sale instance does not apply to a money-loan car pool, which is outside VAT regardless.

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DG Notif.	<i>ประกาศอธิบดีกรมสรรพากร เรื่อง หลักเกณฑ์ วิธีการ และเงื่อนไข การยกเว้นภาษีมูลค่าเพิ่ม สำหรับกำไรสุทธิเป็นหลักทรัพย์</i> DG Notification on VAT exemption conditions for a securitization transfer, B.E. 2542 (1999) pdf/dg-notification-vat-1999-be2542-securitization-transfer-conditions.pdf	Issued under RD 239 s.3, item (8) , as amended by RD 333. cl.1–3 : the same two conditions as the SBT/Stamp DG pair below – SEC-approved project (covering both the transfer in and the transfer back); GAAP booking; effective November 6, 1998. No numbered designation ("ฉบับที่ ...") appears on the instrument's own text – unlike DG 152 or the SBT-3/Stamp-40 pair, this one is unnumbered on its face.	<i>NEW</i> . Added September 4, 2026. The VAT-side twin of the DG Notif. row below; closes the third leg of the transfer-tax conditions set (VAT, SBT, stamp duty all now condition-complete).
RD, Stamp	<i>พระราชกฤษฎีกา ว่าด้วยการยกเว้นรัษฎากร (ฉบับที่ 335) พ.ศ. 2541</i> Royal Decree No. 335 B.E. 2541 pdf/rd-335-1998-be2541-stamp-duty-exemption-decree.pdf	s.3 inserts item (27) into s.6 of Royal Decree (No. 10) B.E. 2500 (see row below): exempts stamp duty on an instrument between the SPJP and a company/partnership/juristic person arising from the securitization transfer, per DG conditions.	<i>A2, B4, G5</i> . The Schedule has no "assignment of a claim" head at all, so the assignment itself was never dutiable; this relief bites on the deal documents, not the assignment.
DG Notif.	<i>ประกาศอธิบดีฯ ภาษีธุรกิจเฉพาะ (ฉบับที่ 3) & อากรแสตมป์ (ฉบับที่ 40) พ.ศ. 2542</i> DG Notifications on SBT No. 3 and Stamp Duty No. 40, B.E. 2542 (1999) pdf/dg-notification-sbt-3-1999-be2542-securitization-conditions.pdf pdf/dg-notification-stamp-40-1999-be2542-securitization-conditions.pdf	Twin notifications, each: cl.1–3 two identical conditions – SEC-approved project; GAAP booking; effective November 6, 1998.	<i>A2, G5</i> . Both reliefs are conditional on the accounting treatment holding up, not automatic.
DG Order	<i>คำสั่งกรมสรรพากร ที่ ป. 26/2534</i> Departmental Order Por. 26/2534, quasi-bank interest Not included in this set	cl.2–5 excludes intercompany-group loans (25% cross-holding, 6+ months) and normal-rate bank/deposit interest from the SBT "quasi-bank" base (Revenue Code s.91/2(5), Group 6).	<i>A1, D3</i> . Precision on what counts as taxable SBT interest for an originator retaining the loans.
DG Order	<i>คำสั่งกรมสรรพากร ที่ ป. 75/2541</i> Departmental Order Por. 75/2541, accrual basis Not included in this set	cl.1–2 confirms banks/finance/securities/credit-foncier/life-insurance businesses on accrual accounting satisfy Revenue Code s.91/8's timing rule (Group 6).	<i>A1, D3</i> . Mechanics of the SBT calculation.
Ruling	<i>คำวินิจฉัยฯ ที่ 31/2538</i> Board of Taxation Ruling No. 31/2538 (1995) pdf/board-of-taxation-ruling-31-1995-be2538-sbt-interest-base.pdf	Holds the SBT interest base (Revenue Code s.91/5, Group 6) for a purchased debt instrument excludes accrued interest embedded in the purchase price; only the buyer's own holding-period interest counts.	Precision point for a vehicle trading debt instruments; not central to a plain loan pool.
RD, Stamp	Royal Decree (No. 10) B.E. 2500 pdf/rd-10-1957-be2500-revenue-exemption-decree-gazette.pdf	The general stamp-duty exemption decree RD 335 amends (item 27, s.6). Instrument list flagged it "if held"; not separately pursued given that qualifier and that RD 335 above already evidences the one relevant provision.	<i>G5</i> . Background only.
3. The vehicle's own tax: the CIT exemption and its conditions, and the reduced SBT rate			
RD, CIT	<i>พระราชกฤษฎีกา ว่าด้วยการยกเว้นรัษฎากร (ฉบับที่ 389) พ.ศ. 2544</i> Royal Decree No. 389 B.E. 2544 (2001) pdf/rd-389-2001-be2544-cit-bad-debt-reserve-exemption-decree.pdf	s.4 exempts CIT on the increase in the SPJP's bad/doubtful-debt reserve over the prior period.	<i>A1, B3</i> . A narrow relief alongside the broader one in RD 441 below.
RD, CIT	<i>พระราชกฤษฎีกา ว่าด้วยการยกเว้นรัษฎากร (ฉบับที่ 441) พ.ศ. 2548</i> Royal Decree No. 441 B.E. 2548 (2005) pdf/rd-441-2005-be2548-cit-exemption-decree.pdf	s.3 exempts CIT on the SPJP's income from an SEC-approved project, per DG conditions – supplied by DG Notification 152 cl.1(1)–(3) : (1) income from an approved project; (2) the project's allocation policy is followed (the Sor Jor. 32/2565 floors, Group 1); (3) no dividend until all assets/residual benefit are returned to the originator and SPJP status ends. pdf/dg-notification-income-tax-152-2006-be2549-securitization-cit-conditions.pdf	<i>A1, A2, B3, G6</i> . Directly bears on the CIT non-neutrality finding . "No exempting Royal Decree located" understates the position: this decree exempts the SPJP's own operating income (the originator's gain on sale is a separate, unrelieved question). Closes most of "the key tax gap" in G6, subject to conditions.
RD, SBT	<i>พระราชกฤษฎีกา ว่าด้วยการลดอัตรารัษฎากร (ฉบับที่ 469) พ.ศ. 2551, แก้ไขโดย (ฉบับที่ 525) พ.ศ. 2554</i> Royal Decree No. 469 B.E. 2551, amended by No. 525 B.E. 2554 pdf/rd-469-2008-be2551-reduced-rate-decree.pdf pdf/rd-525-2011-be2554-reduced-rate-amending-decree.pdf	ss.4–5 reduces the general 3% SBT rate to 0.01% for financial institutions on eight enumerated wholesale receipts only (short interbank lending, repo, debt-instrument interest/trading, securities lending, FX, OTC derivatives, BOT deposit interest). RD 525 s.1 narrows limbs (4) and (8).	<i>A1, A2, A4</i> . Retail car-loan interest is not among the eight limbs ; the 0.01% rate is unavailable on such a portfolio regardless of regulatory status. The draft drops this qualifier where it does analytical work.
4. The trust alternative			
RD, Trust tax	<i>พระราชกฤษฎีกา ว่าด้วยการยกเว้นรัษฎากร (ฉบับที่ 533) พ.ศ. 2555</i> Royal Decree No. 533 B.E. 2555 (2012) pdf/rd-533-2012-be2555-trust-tax-relief-decree.pdf	s.5 exempts a trustee's own CIT on income received from the trust fund (not its fee income); preamble: absent relief, income moving through a Trust Act trust would otherwise be taxed more than once. s.7 exempts VAT/SBT/stamp duty on settlor–trustee (or trustee-to-trustee) property transfers.	<i>B9, G6, A2</i> . Answers "could a trust be CIT-transparent": not transparency, but a trustee-level exemption to similar effect. Its general "trust" definition excludes only sukuk trusts (Kor Ror. 23/2564, Group 1), so it is broad enough to reach a securitization trust on its text, though no ruling names that application. s.7 extends Group 2's transfer relief to a trust structure.

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SEC (cf.)	ประกาศสำนักงาน ก.ล.ด. ที่ สร. 26/2555 (ฉบับประมวล) SEC Office Notification Sor Ror. 26/2555, REIT trust-deed particulars Not included in this set	cl.21(1) a REIT manager must distribute at least 90% of adjusted net profit each accounting year within 90 days of period end. Issued under Trust Act ss.9,15; in force from May 16, 2024 (amendment No. 19).	<i>B9</i> . Comparison only, not load-bearing for a securitization trust: no equivalent mandatory-distribution rule was found for an SPJP trust, unlike a REIT.
5. The asset-class instruments: hire-purchase supervision, consumer contract rules, credit information			
RD / BOT	พระราชกฤษฎีกา ให้ธุรกิจเช่าซื้อ/ลีสซิ่งรถยนต์และรถจักรยานยนต์อยู่ภายใต้ พ.ร.บ. ธุรกิจสถาบันการเงิน พ.ศ. 2568 Royal Decree bringing car/motorcycle HP and leasing under FIBA, B.E. 2568 (2025) pdf/royal-decree-hp-leasing-2568-bot-official.pdf	ss.1–2 given June 2, 2025; effective 180 days after Gazette publication (December 2, 2025); Gazette Vol. 142, Special Part 38 Kor, June 5, 2025. ss.3–4 defines hire-purchase (per CCC) and leasing (non-cancellable finance lease); excludes financial institutions, cooperatives, non-juristic operators and Minister-designated exclusions from its own scope.	<i>Threshold, Go, B8</i> . Post-dates the memo's drafting; sets who is newly BOT-supervised for a hire-purchase pool closing after this date.
BOT	ประกาศ ธพท. ที่ 54/2568 BOT Notification No. 54/2568, financial-business designation pdf/bot-notification-54-2568-hp-leasing-financial-business-designation-transmittal.pdf	Designates car/motorcycle HP and leasing a financial business (FIBA s.4) and permits a financial-business name (FIBA s.12). Dated November 26, 2025; effective December 2, 2025 (Gazette Vol. 142, Special Part 377 Ngor, December 1, 2025). Only the BOT's covering circular is held; the notification's own clauses were not located separately.	<i>Threshold, B8</i> . The regulatory-status trigger.
BOT	ประกาศ ธพท. ที่ 55/2568 BOT Notification No. 55/2568, supervisory criteria pdf/bot-notification-55-2568-hp-leasing-supervisory-criteria.pdf	cl.3 scope: banks/finance cos (already covered), financial-group companies, and the non-bank operators brought in by the Royal Decree above. cl.4.1 defines hire-purchase, leasing, customer, business operator, then sets market-conduct, responsible-lending and complaint-handling standards.	<i>B8</i> . The originator's ongoing compliance burden as servicer, for hire-purchase paper after designation.
OCPB	ประกาศคณะกรรมการว่าด้วยสัญญา เรื่อง ให้ธุรกิจ ให้เช่าซื้อรถยนต์และรถจักรยานยนต์เป็นธุรกิจที่ควบคุมสัญญา พ.ศ. 2565 Contracts Committee Notification, vehicle HP a controlled contract, B.E. 2565 (2022) pdf/ocpb-notification-vehicle-hire-purchase-controlled-contract-2022-be2565.pdf	cl.1 revokes the B.E. 2561 predecessor. cl.2 effective 90 days after Gazette publication (October 12, 2022). cl.3 designates vehicle/motorcycle HP a controlled-contract business. cl.4 mandatory/prohibited terms, incl. a prohibited term at cl.6.6.	<i>B8</i> . Part of the loan-form diligence the review says is required: an SPJP that knows of an anti-assignment clause is not a good-faith third party (CCC s.303, Group 6).
BOT, Act	พระราชบัญญัติการประกอบธุรกิจข้อมูลเครดิต พ.ศ. 2545 Credit Information Business Operation Act B.E. 2545 (2002), BOT English Not included in this set	s.20 governs a credit information company's collection and disclosure of a borrower's credit data, including consent mechanics.	<i>B10</i> . Sectoral credit-information regime alongside the PDPA for a car-loan portfolio's borrower data.
6. The general codes			
Code	ประมวลกฎหมายแพ่งและพาณิชย์ Civil and Commercial Code, consolidated pdf/civil-and-commercial-code-1925-be2468-consolidated-ocs-2026-08-04.pdf	s.303 a claim is assignable unless barred by its nature; a contractual ban binds the parties but not a good-faith third party. • s.305 on assignment, mortgage, pledge or business security tied to the claim, and rights under a guarantee given for it, pass to the assignee. • ss.306,308 assigning a debt to one specific creditor needs writing, and written notice/consent to bind the debtor/third parties; debtor keeps pre-notice defenses/set-offs. • s.307 as between competing assignments of the same claim, the assignment first notified to or agreed with the debtor has priority. • s.237 a creditor may ask the court to revoke a debtor's juristic act done knowing it would prejudice the creditor; does not reach a good-faith third party's prior-acquired right; one-year/ten-year time bar (s.240). • s.572 hire-purchase: owner lets property, promises to sell/vest it after stated installments; writing required or void. • s.654 contractual interest over 15%/year reduced to 15%. • s.1686 a trust has no effect however created, except under a law enabling trust creation – proviso added by the same 2007 Act that enacted the Trust Act.	<i>Threshold, D5, Go, A3, B5, C4, C14</i> . s.303 corrects "comfort" framing; s.305 carries accessory security across on assignment; ss.306/308 is the rule Decree s.15 bypasses; s.307 sets first-notice priority among competing assignees; s.237 is the civil basis the Bankruptcy Act ss.113-116 row operationalizes in insolvency; s.572 is the HP gate; s.654 is the cap Decree s.18 disapplies; s.1686 resolves B5 – the Trust Act exception exists.
Act	พระราชบัญญัติล้มละลาย พุทธศักราช 2483 Bankruptcy Act B.E. 2483 (1940), incorporating amendment No. 10 B.E. 2561 (2018) pdf/bankruptcy-act-1940-be2483-legal-sources.pdf	s.113 the Official Receiver, not the individual creditor, brings the CCC s.237 fraudulent-conveyance action by petition; barred after one year from the Receiver's knowledge of the grounds or ten years from the act (para. 2 added 2018). • s.114 knowledge that the act would prejudice creditors is presumed where the act occurred within one year either side of the bankruptcy petition, or was gratuitous, or the debtor received unreasonably inadequate consideration. • s.115 a preference (a transfer or act intended to prefer one creditor) made within three months either side of the petition may be revoked on the Receiver's petition; extended to one year either side where the preferred creditor is an insider of the debtor (para. 2, added 1999). • s.116 s.115 does not reach a good-faith third party who gave value and acquired before the petition.	<i>C14</i> . The insolvency-stage clawback chain for the servicer/originator relationship: s.113 is procedural (whose action, what time bar), s.114 the one-year knowledge presumption, s.115 the three-month preference window with the insider extension the source memo omitted, s.116 the good-faith-purchaser carve-out. Currency against OCS not independently verified (no Council of State copy retrieved).
Act	พระราชบัญญัติคุ้มครองข้อมูลส่วนบุคคล พ.ศ. 2562 Personal Data Protection Act B.E. 2562 (2019) pdf/personal-data-protection-act-2019-be2562-gazette.pdf pdf/personal-data-protection-act-2019-be2562-ocs-2026-09-05-partial.pdf (OCS print, ss.1-72 only)	s.24 no collection without consent unless an exception applies, incl. (3) necessary to perform a contract to which the data subject is a party (or pre-contract steps at the subject's request) and (5) necessary for the controller's or a third party's legitimate interest , unless outweighed by the data subject's fundamental rights. • s.26 explicit consent required for a closed list of sensitive categories (race, ethnicity, political opinion, religion/philosophy, sexual behavior, criminal record, health, disability, union, genetic, biometric data), subject to listed exceptions; ordinary loan/payment data is not on this list. • s.27 use/disclosure without consent is permitted where the data was collected under an s.24 or s.26 exception, for the same purpose. • s.28 cross-border transfer needs an adequate-protection destination per Committee criteria, unless an exception applies (incl. consent with notice of inadequacy, or contract necessity); s.29 offers an intra-group-policy alternative. • s.40 a data processor acts only on the controller's instructions (else is deemed a controller itself), must keep appropriate security measures and notify breaches, and keep processing records; the controller must put a data-processing agreement in place.	<i>C16</i> . The lawful bases for disclosing borrower data to the SPV (diligence), the servicer, and rating agencies turn on s.24(3)/(5) via s.27; s.26 is not engaged for ordinary retail auto-loan data; s.28 (or s.29) governs any cross-border leg; s.40 is the DPA the servicer needs in place. ss.24/26/28/40 carry no amendment footnote in either filed copy – original 2019 text.
Code	ประมวลรัษฎากร Revenue Code, consolidated Not included in this set; general code, available from rd.go.th	s.91/2(5) charges SBT on business regularly like a commercial bank, incl. lending money. s.91/3(7) lets a royal decree exempt other s.91/2 activities – RD 240's power (Group 2). • s.91/5–6 SBT receipt base by category; rates 3% generally, narrower items 0.1%/2.5%; the 0.01% FI rate (Group 3) is a decree-based cut of the 3% rate, not set here. • s.91/8 monthly self-assessment; chosen method applied consistently. • s.70 15% withholding on Thai-source interest to a non-resident, subject to treaty relief.	<i>A1, Threshold, A5, D6</i> . Charging provision for the money-loan case; the rate structure Groups 2–3 apply; investor withholding on the notes.

The source PDF is authoritative throughout; a page image or a parallel HTML capture is used only where the set's own PDF has no usable text layer, as noted in that file's own header.
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